

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

2025PRTR048243: IN RE THE CHRISTUS FAMILY TRUST 1992

07/29/2026 in Department J6

**Motion to Compel Respondent Robert Heatherly's Further Responses to Requests for
Production of Documents, Set One**

This matter is a Probate Code §850 petition for recovery of trust property. The Petition alleges that Respondent acted as a de facto trustee for approximately twenty years prior to the Settlor's death, exercising control over Trust assets, managing Trust-owned real properties, and directing Trust income through non-trust accounts titled to a fictitious business name ("Heatherly Enterprises"). Petitioners allege that Respondent deposited rental income from Trust-owned properties into these non-trust accounts, later retitled those accounts into his sole name after the Settlor's death, and transferred approximately \$282,791.92 (consisting of Trust income) into his personal accounts.

The court intends to deny the motion as to Requests No. 1-7, 11, 12, 15-20, and 23-25. The court intends to grant the motion as to Requests No. 9, 10, 13, 21, and 22.

The court may impose a monetary sanction on either the petitioner or on respondent or their attorneys or both as the court shall impose sanctions "***against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.***" (CCP §2031.310(h), in pertinent part; emphasis added)

Here as the court is granting in part and denying in part, The court declines to award sanctions.